

		leave to file a proposed cross-complaint against Plaintiff DIANE STERN and THE LAWRENCE AND DIANE STERN FAMILY TRUST. According to the moving papers: Defendants timely prepared a cross-complaint but the attempted filing on 3/3/26 was rejected by the Clerk's Office because of a defect in the pleading caption. Defendants later corrected the caption defect but the resubmittal on 3/18/26 was again rejected by the Clerk's Office, as the Cross-Complaint was not filed <i>with</i> Defendant's Answer on 3/3/26. The proposed cross-complaint appears to be compulsory and there is no apparent basis to find that Defendants have not acted in good faith to file the proposed Cross-Complaint. Moving Parties SHALL separately file the proposed Cross-Complaint within 5 days and immediately serve the Cross-Complaint pursuant to the Code of Civil Procedure. Trial (3-5 day jury) remains set for 11/15/27. Moving Parties to give notice.
6	Real vs. Dhillon Carrier, Inc.	<u>Motion to Quash Service of Summons</u> The court GRANTS Specially Appearing Defendant DHILLON CARRIER, INC's ("Dhillon Carrier") unopposed motion to quash service of summons. Dhillon Carrier moves for an order quashing the service of the summons and complaint that was purportedly effectuated via substitute service on 10/14/25 and/or 12/15/25. (See Proofs of Service, filed 10/16/25 [ROA 10] and 12/22/25 [ROA 16].) When a defendant challenges jurisdiction, the burden is on the plaintiff to prove "the facts requisite to an effective service." (<i>Dill v. Berquist Constr. Co.</i> (1994) 24 Cal.App.4th 1426, 1440. See also, <i>Lebel v. Mai</i> (2012) 210 Cal.App.4th 1154, 1160 ["It was incumbent upon plaintiff, after the